

26PSCV00900 26PSCV00900

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-09-22

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Case Number: 26PSCV00900 Hearing Date: September 22, 2026 Dept: 6

Plaintiff

LRF3 LA John Reed Commerce Portfolio LLC's Request for Entry of Default

Judgment

Defendant: Iconic Stone Plus Tile, Inc.

TENTATIVE RULING

Plaintiff's

request for entry of default judgment is GRANTED in the amount of \$98,252.96. If

Plaintiff submits on the tentative ruling, Plaintiff can submit a revised

proposed judgment consistent with the Court's ruling prior to the hearing.

BACKGROUND

This

is a commercial unlawful detainer action. On March 11, 2026, plaintiff LRF3 LA

John Reed Commerce Portfolio LLC (Plaintiff) filed this action against

defendant Iconic Stone Plus Tile, Inc. (Defendant) and Does 1 to 50, alleging

the sole cause of action for commercial unlawful detainer.

On

April 28, 2026, default was entered against Defendant.

On

April 29, 2026, the court clerk entered default judgment for possession in

Plaintiff's favor.

On

July 28, 2026, Plaintiff requested entry of default judgment by court for money damages.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff

seeks default judgment against Defendant in the total amount of \$135,554.65, including \$105,186.20 in past-due rent, \$27,155.04 in holdover damages, and \$3,213.41 in attorney fees. The Court finds Plaintiff's default judgment request exceeds the amounts specified in the three-day notices, i.e., \$80,014.41 in unpaid base rent and \$13,113.84 in unpaid additional rent, for a total of \$93,128.25 in unpaid rent. (Bubna Decl., Ex. 2.) While the Complaint alleges \$36,869.36 in previously waived rent that became due upon Defendant's breach, that amount is not identified in either of the three-day notices. (See *ibid.*; Compl., ¶ 6.)

The Court cannot award past-due rent that was not mentioned in the three-day notices. (*Olivares v. Pineda* (2019) 40 Cal.App.5th 343, 354 ["A landlord cannot recover in an unlawful detainer based on a three-day notice that seeks rent in excess of the amount due. [Citation]"].) Code of Civil Procedure section 1161.1 does not save Plaintiff here because the three-day notice for the unpaid base rent is not based on an estimate. (Code Civ. Proc., § 1161.1; Bubna Decl., Ex. 2.) Moreover, even though the additional rent was estimated, the excess amount sought is for repayment of waived base rent, not additional rent,

and the three-day notice .for base rent was not estimated. Furthermore, even if the excess amount was based on the estimated additional rent, it exceeds the 20% threshold under subdivision (e) of Code of Civil Procedure section 1161.1. (Code Civ. Proc., § 1161.1, subd. (e).) Plaintiff's claimed unpaid additional rent is \$13,113.84 and the claimed waived rent is \$36,869.36, which far exceeds the 20% threshold. For the sake of clarity, none of this affects the \$27,155.04 in holdover damages. (Bubna Decl., ¶ 12.)

Based on the foregoing, the Court is limited to awarding Plaintiff \$95,453.88 in unpaid rent and holdover damages, comprised of \$93,128.25 in unpaid rent less application of the \$24,829.41 deposit, plus \$27,155.04 in holdover damages. (Bubna Decl., ¶¶ 11-13.)

Consequently, Plaintiff's attorney fee request is overstated. The Court will therefore award Plaintiff \$2,799.08 in attorney fees, i.e., \$1,890.00 plus \$909.08 (2% of \$45,453.88 [\$95,453.88 less \$50,000.00]). (Local Rule, rule 3.214.)

CONCLUSION

Plaintiff's request for entry of default judgment is GRANTED in the amount of \$98,252.96. If Plaintiff submits on the tentative ruling, Plaintiff can submit a revised proposed judgment consistent with the Court's ruling prior to the hearing.